

**THE CONSTITUTION (TENTH AMEND-
MENT) BILL, 1961**



**(AS INTRODUCED IN LOK SABHA
ON 11TH AUGUST, 1961)**

**THE CONSTITUTION (TENTH AMENDMENT) BILL,
1961**

(AS INTRODUCED IN LOK SABHA)

A

BILL

further to amend the Constitution of India.

BE it enacted by Parliament in the Twelfth Year of the Republic of India as follows:--

1. (1) This Act may be called the Constitution (Tenth Amendment) Act, 1961. Short title
and com-
mencement.

5 (2) It shall be deemed to have come into force on the 11th day of August, 1961.

2. In the First Schedule to the Constitution under the heading **"THE UNION TERRITORIES"** after entry 6, the following entry shall be inserted, namely:— Amendment
of the First
Schedule
to the
Constitution.

10 "Dadra and Nagar Haveli. The territory which immediately before the eleventh day of August, 1961 was comprised in **Free Dadra and Nagar Haveli**".

3. In article 240 of the Constitution, in clause (1), after entry (b), Amendment
of article
240.
15 the following entry shall be inserted, namely: —

"(c) Dadra and Nagar Haveli."

STATEMENT OF OBJECTS AND REASONS

The people and the Varishta Panchayat of Free Dadra and Nagar Haveli have repeatedly affirmed their request to the Government of India for integration of their territories with the Union of India to which they rightly belong. Their request was recently embodied in a formal Resolution adopted by the Varishta Panchayat on the 12th June, 1961.

In deference to the desire and request of the people of Free Dadra and Nagar Haveli for integration of their territories with the Union of India, the Government of India have decided that these territories should form part of the Union of India.

It is proposed to specify these areas expressly as the Union territory of Dadra and Nagar Haveli by amending the First Schedule to the Constitution. It is further proposed to amend clause (1) of article 240 of the Constitution to include therein the Union territory of Dadra and Nagar Haveli in order to enable the President to make regulations for the peace, progress and good government of the territory.

The Bill seeks to give effect to these proposals.

NEW DELHI.

JAWAHARLAL NEHRU.

FINANCIAL MEMORANDUM

On the integration of Dadra and Nagar Haveli with the Union of India and its inclusion as a specific Union territory in the First Schedule to the Constitution, the entire administration of the territory will become the responsibility of the Central Government. This will necessarily involve expenditure out of the Consolidated Fund of India. This will also, however, involve the amalgamation of the revenues derived in the territory with the Consolidated Fund of India.

2. During the current budget year, the revenue is expected to be about Rs. 18 lakhs and ordinary expenditure about Rs. 11 lakhs, leaving a surplus of approximately Rs. 7 lakhs. With their integration, these areas will also be brought within the scope of the Development Plan of the Union of India and the anticipated surplus will be availed of for special development schemes for these areas, supplemented if necessary by additional amounts from the Consolidated Fund of India.

3. Over the past few years, the Administration of Dadra and Nagar Haveli have accumulated surpluses amounting to Rs. 30 lakhs. On the integration of these areas with the Union of India, these accumulated surpluses will accrue to the Consolidated Fund of India.

ANNEXURE

EXTRACTS FROM THE CONSTITUTION OF INDIA

FIRST SCHEDULE

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II. THE UNION TERRITORIES

<i>Name</i>	<i>Extent</i>
1. Delhi	The territory which immediately before the commencement of this Constitution was comprised in the Chief Commissioner's Province of Delhi.
2. Himachal Pradesh	The territories which immediately before the commencement of this Constitution were being administered as if they were Chief Commissioners' Provinces under the names of Himachal Pradesh and Bilaspur.
3. Manipur	The territory which immediately before the commencement of this Constitution was being administered as if it were a Chief Commissioner's Province under the name of Manipur.
4. Tripura	The territory which immediately before the commencement of this Constitution was being administered as if it were a Chief Commissioner's Province under the name of Tripura.
5. The Andaman and Nicobar Islands.	The Territory which immediately before the commencement of this Constitution was comprised in the Chief Commissioner's Province of the Andaman and Nicobar Islands.
6. The Laccadive, Minicoy and Amindivi Islands.	The territory specified in section 6 of the States Reorganisation Act, 1956.

* * * * *

240. (1) The President may make regulations for the peace, progress and good government of the Union territory of—

(a) the Andaman and Nicobar Islands;

(b) the Laccadive, Minicoy and Amindivi Islands.

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Power of President to make regulations for certain Union territories.

LOK SABHA

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BILL
further to amend the Constitution of India.

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*(Shri Jawaharlal Nehru,
Minister of External
Affairs)*